

Request for Proposal 70FB7026R00000013
Disaster Overseas Transportation Support: American Samoa, CNMI, Guam

Question #1 Submitted:

Is there any incumbent/recompete or this is a brand-new project? If yes, could you please provide us with their award number or even if the customer bought similar services in the past.

Government Response:

The current contract numbers are 70FB7021D00000019 and 70FB7021D00000020.

Question #2 Submitted:

Reference:

(a) Performance Work Statement (Attachment Ia), Section 1.3 (Scope) and Section 1.3.2 (Place of Performance and Historical Location Information), Page 2; and (b) Solicitation, Schedule of Supplies and Services, CLINs 0001 through 0002 (and successor CLIN structure for option periods), Pages 2–3.

Background:

PWS Section 1.3 establishes the scope as port operations and transportation services from CONUS/OCONUS ports to Guam, American Samoa (AS), and the Commonwealth of the Northern Mariana Islands (CNMI). PWS Section 1.3.2 identifies the FEMA Distribution Center at Barrigada, Guam as the Primary Receiving Location, along with the Ports of Saipan, Tinian, Rota, and Pago Pago. The CLIN structure further breaks out discrete transportation line items by destination (e.g., CLIN 0002AA – Ground Transportation: At Destination – American Samoa).

Will the Government accept proposals from offerors that propose performance for only a subset of the geographic locations identified in the PWS — for example, CNMI only; CNMI and Guam only; or American Samoa only — or must each offeror propose performance for the entirety of the AS, GU, and CNMI geographic scope to be considered responsive?

If partial-scope proposals are permitted, please clarify: (a) which CLINs may be omitted; (b) whether partial-scope proposals will be evaluated on equal footing with full-scope proposals under Factors 1 through 5; and (c) whether the Government anticipates issuing task orders limited to an awardee's proposed geographic coverage in a multi-award outcome.

Government Response:

Partial scope proposals will not be considered.

Question #3 Submitted:

Reference:

Performance Work Statement (Attachment Ia), Section 1.3.4 (Cargo Preference Laws Compliance), Page 3.

Background:

PWS Section 1.3.4 states: "The Prime Offeror or the Prime Offeror's major subcontractors shall be the owner(s) of US Flag vessels. A major subcontractor is defined as a subcontractor that is expected to provide services that equals or exceeds 5% of the total in performance of this requirement."

Please confirm that a Prime Offeror who does not itself own U.S. Flag vessels may satisfy the cargo preference requirement of PWS Section 1.3.4 by teaming with a major subcontractor (performance share ³ 5%) that is the owner of U.S. Flag vessels providing all ocean transportation

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services under this contract. If so, please confirm what documentation the Government requires at proposal submission to evidence the teaming arrangement and U.S. Flag vessel ownership (e.g., teaming agreement, Letter of Commitment, U.S. Coast Guard Certificate of Documentation).

Government Response:

Yes, a Prime Offeror who does not itself own U.S. Flag vessels may satisfy the cargo preference requirement by teaming with a major subcontractor that is the owner of U.S. Flag vessels providing all ocean transportation services under this contract. The Offeror shall certify in writing that all vessels used in the performance of this contract are coastwise qualified, compliant with coastwise trade laws and documented with the United States Coast Guard Certificate of Documentation and have a coastwise endorsement. Offerors will be required to provide a copy of the vessel's Certificate of Documentation (Coastwise Endorsement) issued by the U.S. Coast Guard at task order award.

Question #4 Submitted

Reference:

Performance Work Statement (Attachment Ia), Section 2.2.4 (Arrival at the SPOD), Page 7.

Background:

PWS Section 2.2.4 states: "FEMA's requirement is approximately 500,000 Sq. Ft (combined) at multiple CONUS and OCONUS facilities."

Please clarify whether the 500,000 square foot figure is: (a) a minimum aggregate requirement that offerors must demonstrate access to at proposal submission, or an approximate surge capacity that the Government may task-order against; (b) allocated in any prescribed CONUS vs. OCONUS split, and if so, what the minimum OCONUS footprint is; and (c) whether covered, climate-controlled, or any other specific warehouse type is required, versus open paved/graveled yard space consistent with PWS Section 2.2.1 staging yard specifications.

Government Response:

The 500,000 square foot figure is a minimum aggregate requirement that offerors must demonstrate access to at proposal submission.

There is no prescribed minimum split, however the focus for warehousing storage and suitable MHE/CHE should be documented specific to Guam, CNMI (Saipan-largest island), and American Samoa. Warehousing must be secured and covered (dry) from the rain and wind.

Question #5 Submitted:

Reference:

(a) Performance Work Statement (Attachment Ia), Section 2.1 (Start and Continuous Service), Page 5; Section 2.5 (Task Order Delivery Requirement), Page 9; and Section 3.2 (Key Personnel), Pages 11–13; and (b) Solicitation, Schedule of Supplies and Services, and Pricing Template (Attachment II).

Background:

PWS Section 2.1 requires the Contractor to be "fully functional within 48 hours of task order award" with resources, equipment, and personnel available 24 hours, 7 days a week. PWS

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Section 2.5 requires guaranteed availability of an ocean vessel "on a 24/7 basis through-out the lifecycle of the task order." PWS Section 3.2 requires the Contractor Operations Project Manager to be "available and actively engaged on a 24/7 basis pre-issuance of the task order."

Please clarify: (a) the minimum guaranteed task order value or minimum ordering commitment, if any, during the base period and each option period; (b) the mechanism by which the Contractor is reimbursed for continuous readiness costs (including designated Key Personnel, committed vessel capacity, and 24/7 operational availability) during periods when no active task order has been issued; and (c) whether a separate standby/readiness CLIN exists in the Pricing Template, or whether readiness costs must be absorbed into unit pricing on the transportation and service CLINs.

Government Response:

The minimum guarantee for this effort is outlined in section B.3 of the RFP. There is no reimbursement or readiness CLIN for this effort.

Question #6 Submitted:

Reference:

Solicitation Section E.6, FAR 52.212-2 Evaluation – Commercial Products and Commercial Services (Deviation 25-21), Page 167; and SF 1449 Block 10 (NAICS 483111, Size Standard 500), Page 1.

Background:

Section E.6 states: "One (1) of the awards will be reserved for a small business concern, who is determined to be technically acceptable with fair and reasonable pricing, in accordance with FAR 19.503." The solicitation is otherwise Unrestricted.

Please clarify: (a) whether the small business size determination for the reserved award is made at the Prime Offeror level under NAICS 483111 (500-employee size standard) as of the Phase II proposal submission date; (b) whether small business offerors are evaluated under the same Factor 1 through Factor 5 criteria and ratings as non-small offerors, or whether a separate technically-acceptable threshold applies; (c) whether the small business reserved award is determined at Phase I, Phase II, or at final source selection; and (d) whether a small business Prime may satisfy PWS requirements (including U.S. Flag vessel ownership per PWS 1.3.4) through subcontracting arrangements with large businesses without affecting small business eligibility for the reserved award, subject to FAR 52.219-14 (Limitations on Subcontracting).

Government Response:

Small business status will be confirmed when the Phase II submissions are submitted. Small businesses are subject to all evaluation factors and criteria, excluding the Small Business Subcontracting Plan. The Small Business Reserve is subject to proposal evaluation, inclusive of all technical and price factors, and will be determined at the conclusion of source selection. For Small Business Reserves, RFO 52.219-14 applies at the order level should an award be made.

Question #7 Submitted:

Reference:

Solicitation, Evaluation Factors and Methodology – Phase I, Factor 1 (Demonstrated Experience), Page 169.

Background:

The evaluation instructions state: "Offerors shall submit a minimum one (1) example or up to three (3) recent Government and/or commercial examples of demonstrated experience in the proposal

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as prime or subcontractor, clearly identifying their roles and responsibilities. Recent is considered within the last (10) ten years, and relevant is of similar scope and complexity with a minimum completion dollar value of \$10,000,000.00."

Please clarify: (a) whether the \$10,000,000 minimum completion dollar value applies to each individual example submitted, or whether the aggregate value of multiple smaller completed contracts demonstrating equivalent scope and complexity may be presented as a single example; (b) whether the dollar threshold applies to the Offeror's share of a teaming or joint venture arrangement, or to the total contract value regardless of the Offeror's performance share; and (c) whether Demonstrated Experience examples from a proposed major subcontractor (as defined in PWS 1.3.4) may be attributed to the Prime Offeror for Factor 1 evaluation purposes, provided the subcontractor's experience and roles are clearly identified.

Government Response:

(a) The \$10,000,000 minimum completion dollar value applies to each individual example submitted demonstrating equivalent scope and complexity.

(b) The dollar threshold applies to the Offeror's share of a teaming or joint venture arrangement.

(c) Yes, Demonstrated Experience examples from a proposed major subcontractor (as defined in PWS 1.3.4) may be attributed to the Prime Offeror for Factor 1 evaluation purposes, provided the subcontractor's experience and roles are clearly identified.